IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH

ITEM No. 13
(CAA)-24(PB)/2018

IN THE MATTER OF:
Flipkart Digital Media Pvt. Ltd.
& Instakart Services Pvt. Ltd. .... Petitioner

Order under Section 230-232 of the Companies Act

Order delivered on 20.02.2020

Coram:
DR. DEEPTI MUKESH
HON'BLE MEMBER (JUDICIAL)

SH. S.K MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the petitioner: :Mr. Rajat Joneja, Mr. Kartikey gupta, Advs.

ORDER

Ld. Counsel for the applicant seeks to take appropriate instructions. Let ROC be made a party. There is no dispute that a vital and material change in the scheme has been proposed at this stage by changing the effective date from 01.04.2017 to 01.04.2020. It has to be seen as to whether such vital change in the scheme can be incorporated at this stage without approval of members and creditors of respective companies.

List for further consideration on 20.03.2020.

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

Sd/-

(DR. DEEPTI MUKESH)
MEMBER (JUDICIAL)

20.02.2020
Ritu Sharma